

Judge Ben B. Lindsey

ON

**The Child—The Movie—
and Censorship**

Judge Ben B. Lindsey

ON

**The Child—The Movie—
and Censorship**

The Project Gutenberg eBook of Judge Ben B. Lindsey on the child—the movie—and censorship

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Judge Ben B. Lindsey on the child—the movie—and censorship

Author: Ben B. Lindsey

Release date: July 30, 2026 [eBook #79231]

Language: English

Original publication: New York: Motion Picture Producers & Distributers of America, Inc., 1926

Other information and formats: www.gutenberg.org/ebooks/79231

Credits: Charlene Taylor, Sam Lamb and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK JUDGE BEN B. LINDSEY ON THE CHILD—THE MOVIE—AND CENSORSHIP ***

Judge Ben B. Lindsey

ON

**The Child—The Movie—and
Censorship**

“I defy anyone to show that one city or state with censorship is any better than other cities or states like our own where there is no censorship.”

“The movie is a real League of Nations, binding the world together through seeing that they are all just the same as each other.”

“Pontius Pilate was the first great censor.”

“I believe in real religion and real education.”



Motion Picture Producers & Distributors of America, Inc.

WILL H. HAYS, Pres.

469 Fifth Avenue
New York City

Judge Ben B. Lindsey

Judge of the Juvenile and Family Court of Denver, Colorado.

Judge Lindsey is one of the best known of Americans. He is an authority on child welfare and juvenile treatment—a writer of note on the subject, a lecturer, a man whose opinions are sought.

In January, 1899, he was appointed public guardian and administrator of the County Court of Denver, that under the first Colorado Juvenile law of April 12th, 1899, became the Juvenile Court. The following year he was appointed, and ten times since has been elected Judge of that Court, in which he is now serving his twenty-sixth year. In Who's Who for 1925 he is listed as the “promoter of the juvenile court system and originator of some of its features and has international reputation as an authority upon juvenile delinquency.”

Judge Lindsey is author of the Colorado Juvenile Court laws and with his collaborator (Wainwright Evans) the recent much discussed book “The Revolt of Modern Youth.” In this book Judge Lindsey takes a firm stand against censorship.

The following address was delivered by Judge Lindsey at the Fourth National Motion Picture Conference in Chicago, Ill., in February, 1926.

The Child—The Movie—and Censorship

By JUDGE BEN B. LINDSEY

Ladies and Gentlemen:

As stated in your program, “This is an open conference with a free platform—all are welcome.”

I trust that I may be of some service. Even though we differ in methods, our purposes are the same. We want clean, wholesome motion pictures and we want to protect the youth of this country against any evil in this popular form of entertainment, as well as to secure for them the best that is to be had in this new, marvelous method of human expression. And whatever may be our differences, I wish to express my own appreciation of the value of an association like this in bringing about a free and open discussion that may help to disclose to us real remedies against the evils that we all oppose.

I have friends here in this conference with whom I differ as to methods to that end, but I have the highest respect for the sincerity of their purposes, as I believe they will have for mine. **For my views on the subject of governmental censorship are well known. They have been formulated after nearly twenty-seven years of experience in a Juvenile Court that came into existence under our Colorado law of 1899**—the same year as that of the Juvenile Court of your own great city of Chicago, which, next to Denver, I count as home, because here reside some of my dearest friends.

VIEWS ARE WELL-KNOWN

When it was suggested that, having engagements in and about Chicago, under the auspices of the Redpath Lyceum Bureau, having its main offices here, I might be of service in presenting my views on censorship at this meeting, I said I would prefer to do so under the auspices of some disinterested group. As a result of this preference, you have heard read the request of Mrs. Virginia Palmer, Chairman of the Motion Picture Division

of our Colorado State Parent-Teacher Association, requesting that I be heard here.

However, I wish to assure you that this is not by way of any apology whatever in presenting these views under any auspices, interested or disinterested. There can be no crime in any event for a man to do that when his sincere views are as well known as mine are and as, in recent years, they have been expressed literally hundreds of times.

In nearly every public lecture I have given on childhood and crime during recent years, I have stated over and over again my opposition to governmental censorship of the movies as a remedy for evil.

In our recent book, THE REVOLT OF MODERN YOUTH, we took a firm stand against Censorship, and within a few days, it will be exactly five years ago that, in the City of Detroit, I delivered an address dealing with censorship and crime in the movies. That address was very widely circulated. Part of it was printed and thousands of copies were distributed. And so, when I left Denver with the request of Mrs. Virginia Palmer, the State Chairman of Motion Pictures of our State Parent-Teacher Association, that I take part in this conference, I redictated an old address of five years ago and brought it with me. To this I have added some more extended observations in confirmation of the conclusions there expressed after much thought, much study and much experience.

SANER METHODS BY COOPERATION

This all compels me to favor what I consider the saner, more constructive censorship by cooperation between social agencies, the public, the producers and exhibitors as against what I believe to be the more questionable and dangerous power of governmental censorship.

Mrs. Palmer, the Chairman of the Motion Picture Department of our State Parent-Teacher Association, supplied me for this meeting with considerable literature of that organization in support of their stand for the former kind of censorship as against the latter. The Parent-Teacher Association of Colorado is a part of that great national organization of the

best motherhood and womanhood of this country. In recent years, they conducted a series of discussions and debates on the entire subject of so-called “censorship” or state regulation of motion pictures. This involved an investigation of what is being done in this regard in all other cities and states. It resulted in the adoption at their State Convention at Colorado Springs in May 1921, of the following resolutions:

WHEREAS, The picture loving public should be given an opportunity to act as their own censors, and

WHEREAS, Pictures cannot be adapted to the mentality of the lowest type of person and potential criminals are much in the minority, and therefore, may not be considered as representing the patronage of the Motion Picture Theatre, and

WHEREAS, All lasting reforms are derived from within,

BE IT RESOLVED: That it be the continued policy of the Mothers Congress and Parent-Teacher Associations to work for the Better Film movement through cooperation, selection and for public education.

EDUCATION AND SELECTION

This organization has never found any reason to change their opinion thus expressed. At their recent state convention, they again reaffirmed it. A most successful constructive work, formulated at their state conventions, has been carried on in behalf of better pictures. They oppose censorship with their motto: “Education and Selection.” In addition to this definite plan, there is a constant propaganda carried on among its various units for the type of picture that they think deserves encouragement. Their efforts to create a public demand for better pictures and to support the producers and exhibitors in their efforts to furnish them, has been so superior to any city or state censorship boards that any demand for any such remedy in Colorado has become extinct. No one would think of giving it the slightest encouragement in face of the big, constructive work of the Parent-Teacher organization of our state.

I am glad to avail myself, not only of the privilege afforded through the request referred to, that I take part in this program, but also to give some of my own views, after more than a quarter of a century in the Juvenile Court, on the whole subject of the problem of good and evil as it relates to motion pictures.

THE MOVIES, CENSORSHIP AND CRIME

I do not agree with those who claim that crime among youth is so largely due to what is shown in motion pictures. Of course, some of the weak-minded and the vicious have doubtless been stimulated to crime by something good or bad that they have seen in the movies. This may also be said of what they have read in the Bible, the newspapers, magazines and all kinds of literature, or through the misuse of automobiles, dancing or music. **But we must always keep in mind that far more good than evil has come out of all these things.**

Good and evil is a matter of relativity. It is comparative. If motion pictures are to reflect from nature the face of virtue, they must also show the image of vice. To make virtue lovable and vice despicable, we must know what they are. We all admit there are decent and indecent, acceptable and unacceptable methods by which this ought to be done. Yet, it must be done or there can be no lessons from life; there can be no strengthening of character. By no system of wet-nursism, can you solve the problem of crime by hiding bad things or the truth about them, or by depriving children of the right, under proper conditions, to see, to hear and to know what they are.

They may be worse off if shielded from knowledge of evil or spared any contact with it. They will be better and stronger if wisely familiarized with evil in order to know how to avoid it—or, facing it, to conquer it. “Vice is a monster of such frightful mien, that to be hated needs but to be seen.” And I would rather take a chance for youth through their seeing vice too often than in not seeing it enough if they are to learn to hate it and so triumph over it.

We are losing sight in this country of some fundamental things about the whole problem of good and evil. As a result, when some of our reforms and crusades are won, we may be worse off than when we started. If our remedies do not fail altogether, they produce worse evils. The “kick” that some people get out of reforming often blinds them to the facts about good and evil and how to overcome evil. A man on a jag is always blind to the things about him.

CHILDREN ELEVATED, INSPIRED

Now, I am here to say, after talking it over with Court officers, who have worked with me for years, that we have yet to find one case of crime among youth that could fairly be traced just to the movies. I do not recall more than two or three cases in my experience of over a quarter of a century on the bench, where there was even reasonable ground to believe that the cause of crime was due just to what the offender had seen in the movies.

But I do know of thousands of children who have been elevated, inspired and made happier because of the movies; who have been kept off the streets, out of the alleys, the vulgar story-telling of the barnyards and a multitude of idle, evil associations, by the wholesome appeals and opportunities of the movies.

I also know that other agencies—against which no censorship, local or national, has ever been proposed—have done far more toward producing crime than the movies. If we did not have any motion pictures at all, we would have far more crime than we have. Nothing in the last fifty years of the most eventful history of all time, has done more to reduce sin and crime and add to the happiness, education and progress of the human race than motion pictures. And it is going to do more and more in this regard in the years to come.

I am satisfied that most of the cases of crime which good people trace to the movies are generally caused by misunderstanding or misuse of perfectly proper stories as well as bad stories thrown on the screen. This is shown by the fact that there is certainly no more and probably less crime, especially among youth, in cities, where there is no local or state censorship.

CENSORSHIP DOES NOT IMPROVE

I defy anyone to show that one city or state with censorship is any better in this regard than other cities or states like our own, where there is no censorship, and where such organizations as our Parent-Teacher Associations are firmly against it.

They show us a messy lot of contradictions and silly absurdities in mussing up films, aggravating, useless annoyances, and frequently petty politics and tyranny as the result of their differences of opinion about what is good and what is bad, but they cannot show that they are any better or that they have accomplished anything provably worth while, that could not have been as well, or better done without these, to me, ridiculous hobbles.

Anything they have done has been far better done in cities like Denver, through cooperation of civic agencies with the producers and exhibitors themselves. Any good that has ever come out of city or state censorship is sure to be overbalanced by just as much evil and just as much nonsense as any that has been prevented—if any has been really prevented.

MOVIES BATTLE AGAINST WAR

The movies are going to do more than any other agency to prevent the greatest of all crimes, horrid war. Through motion pictures, all nations, people, races and creeds, all speaking the same language, of the movies, are being brought into concord, acquaintanceship and understanding. And when they know and understand each other, they will love and cease to hate each other and war shall be no more. **It is a real League of Nations in binding them together through seeing that they are all just the same as each other**—that there are no bad people and no good people when properly understood, but there are bad things and good things as they reflect through the bodies or behavior and conduct of people, depending on causes, which as yet we know little about, and that the great lesson of Life is to learn how to wisely fight evil more and people less.

Mankind has conquered all the reptiles and the wild beasts that threatened his mastery of this planet. Why? Because, primarily, he could see them, because they were known to him. But he hasn't conquered all disease

—that remains to threaten his dominion. Why? Because it is mostly the unseen beasts—the bugs, parasites and germs just now beginning to be seen. As with evil and disease, the movies will do more than all else besides to make them real—to make them known.

IT IS THUS THE GREATEST EDUCATOR THE WORLD HAS EVER HAD—THE VISUAL EDUCATOR.

And when all things are seen and known to man, he becomes forever the undisputed sovereign of the world. Through visual education the average child of twelve is in the future to know more in academic education than the present college graduate. Largely through the movies, among the future great inventors of the world, we shall behold children from ten to twenty-one years of age.

OVERCOME EVIL WITH GOOD

How, O Master, shall we overcome evil—is still the eternal question of a war-ridden, hate-ridden, fearful world. Instead of any longer listening, it is growing listless to the eternal answer—“Overcome evil with good.” He never said to overcome it through governmental suppression and the hate-breeding violence of forcible censorships. That was the answer of Pontius Pilate. **And Pontius Pilate was the first great censor** and Jesus Christ the first great victim of censorship. On behalf of this nation’s childhood, whose destinies are to be injured by such false remedies, I appeal from the gospel of Pilate to the gospel of Christ.

But what shall we do, you may ask, to guard that destiny which we all equally have at heart? It is not an easy thing always to know just how to overcome evil with good. It is much easier for some parents, teachers, unwise, if not ungracious pastors, to leave the job to a board of censors or some new-fangled statute law with its abuses, blackmails, grafts, persecutions, stupidities and tyrannies. Are we to be a nation of dodgers, of weazened shirkers, putting responsibility on laws, laws and more laws, bureaus, bureaucrats, censors and regulators until we are glutted, choked and suffocated with laws to let any George do it, but the right George?

Are we to become a nation of “squealers,” passing the buck from parents, homes, schools and churches for their responsibility for Youth, to some

perfectly human-to-err censors who may be wise and good but likely to be mostly foolish, if, as in the case of some of our prohibition regulators, they are not crooks and grafters, to flounder in their own helplessness because they do not know what is good or what is evil or how to fight it.

Consider the fact that even now a picture that one governmental censor board says is good, another in some other state, condemns as bad. And consider the rank injustice of city or state censorship authorities passing a “bad” picture as “good” in one such city or state, and this same perfectly “good” picture as “bad” in another, as these different censorship boards often do.

FATHERS FOUGHT FOR FREEDOM

Only gradually and painfully, through science mostly, now more and more handmaiden of real education and real religion, shall we know how to overcome evil. It is always with good. It is too big a problem for me to give all my views on here. In our “Revolt of Modern Youth” I took an entire book to tell more about it as I see it. But I do not believe Christ was wrong nor that the people of this Republic are wrong, who since its foundation in the wisdom of our Fathers, have fought for just such liberties as governmental censorship will deny us.

Now, I think a great deal of good could be done in the fight against evil if our parents and Sunday-school teachers would question youth more as to their motives for righteous conduct, and with more time and patience set them right as to their real meaning. You ask them why they do right and they will generally tell you that it is “to keep out of jail,” or “the cop’ll get me,” or “I’d get a licking” or “I’ll go to hell.”

Thus, from perfectly well-intentioned teaching, what we are putting mostly in their lives is misunderstanding. That is, we are trying to get virtue mostly by artificial restraints—the same kind of restraints that are now being proposed through forcible censorship and regulation. These fears no longer serve as restraints and we are very much at fault in doing so little to substitute natural restraints as these artificial ones are passing.

Fundamentally, it is our overstrain in the demand for these artificial restraints upon human conduct—restraints that come from without—that is

making most of the crime in this country. And their over-emphasis to the neglect of natural restraints is due far more to ignorance in churches and schools than the motion pictures. There is such a thing as going too far in our insatiate demand for these artificial restraints. It is a greater crime against youth, fostered mostly by well-meaning church people who are ignorant about youth. They are causing us to forget all about the more important restraints, or to indulge in a lazy indifference regarding them because of our mistaken faith in restraints so largely artificial.

As against these, what we need most in the lives of youth are the natural restraints. They come from within. They enable children and people, in the face of every evil and temptation, without being afraid to know about it, to see it or to hear about it, to be so fortified from within against it that they will stand up to meet it and conquer it. In other words, to have the strength of character to do right because it is right—not through the fear of punishment or the hope of rewards—but through true education and religion.

These artificial restraints, so long thus over-emphasized in schools and churches, and beheld on every hand in demands for more suppressions, regulations, prohibitions, punishments, coercions and censorships, are failing. And it is our insistent refusal to substitute more of the natural restraints in homes, schools and churches, that is the great cause of crime in this country. You do not cure evil by more censorships and prohibitions, don'ts, verbotens and taboos. You are just adding fuel to the flame you are setting up in this country. The restraints of hell-fire and damnation are gone. They do not frighten any more. Those of policemen, prisons and fears of punishments are going just as fast. The thing that makes most people good in this country is not any of these things. The thing that will make the bad ones good is more of the thing that has made the good ones good—the natural restraints.

GOOD AND EVIL ARE RELATIVE

I said good and evil are relative. You cannot helpfully know one without the other. They should, of course, appear in proper perspective. Their relationship for moral uplift should be clear. I insist that the great majority

of the movies do thus emphasize them in their true light. Vice is ever shown as the enemy and destroyer of human happiness; virtue as the only true course to secure the real joys of life; that achieves the only victories worth while.

In the movies, righteousness wins; sin loses. The hero triumphs. The villain bites the dust.

Not only decency but the pocketbook guarantees these general averages, and that general average is the best we can hope for in anything. Nothing is perfect and censorship will not make it so. You cannot legislate right understanding into the human mind. By the more and more decent methods of showing life, as I believe to be more and more the rule in the movies, they furnish a great outlet, not only to the natural, wholesome craving for excitement and adventure, but for a necessary and legitimate amount of sex expression which otherwise, from sheer suppression, is far more harmful and more likely to result in sin and crime.

Some of the gossamer fabric of unreality, as in fantasies, dreams and fairy tales, is just as necessary in the movies as are the realities of life, to minister to the complexes and, as governors, to release the strange suppressions of nature. There is always to be expected the decent licenses of poetry and the exaggerations of fiction.

NATIONAL HOBBY TO ATTACK

It has become a national hobby of ours, in the absence of much good sense, to indulge in these thrilling and adventurous battles against evil until we are becoming so ridiculous that only a modern Cervantes, with another Don Quixote, can bring us to our senses. Each time, in each onslaught, we have some one thing for the “goat.” Then we all assemble for the chase. For many of us, it is great fun. For others, it is a grievous concern. At one time it is the legalized liquor traffic; at another, it is the cigarette or the automobile, the racy literature, the dance or jazz music. Each time it is this or that one thing that is causing all the sin. I do not know what it is going to be when the kids begin spooning in the clouds in the aerial autos of tomorrow. Neither the censors, nor the parents, nor the laws can follow them there. At the present time the “goat” is the movies.

We have the admission of the advocates of censorship that evil among youth may come from other agencies besides movies. Some of these agencies are automobiles, music (jazz or grand opera), department store windows, newspapers, books, magazines, ordinary pictures, etc. Now their logic must be that the youth of this nation are lost beyond redemption unless we apply their censorship for evil in the movies, to evil in all these other agencies. Unless this is their purpose, of what shall it avail us to get evil out of the movies by censorship—unless, by the same methods, we extract it from all other agencies of usefulness or happiness?

On the other hand, if our youth are not to be lost because of our failure to apply censorship to automobiles and other agencies, then why apply it to the movies? In the case of the movies, as in the case of all these other agencies for both good and evil, why should we not depend on existing laws against crime, and in addition, what is far more important, why should we not trust to the **good old institutions of parents, homes, real education, real religion and the development of scientific truth to fortify youth against evil, by equipping them with strength in their own souls to conquer it.** I tell you that it cannot be done in any other way.

BUILD SELF RELIANT YOUTH

Our vision in this matter of censorship must not be limited to the mere entertainment of motion pictures furnished by the present motion picture industry. It must go far beyond that. For, in addition to censoring all forms and agencies of pleasure now contemplated, the amazing power demanded by the censorship advocates includes the power to also censor every teaching of science (evolution and otherwise), economics, patriotism, religion and government. As one after the other shall fall to the fetters of censorship, we shall get further and further away from real remedies for evil, only to become more and more enslaved to the forces of reaction of fanaticism, ignorance, superstition, despotism and tyranny. All this crusading for such false remedies is making us more and more the laughing stock of the world. If we yield to the demands of its well-meaning, but mistaken zealots, we shall nurse up a generation of human jelly fish, of weaklings, dependents, morons and criminals instead of a nation of sturdy, self-reliant boys and girls.

IMPROVEMENT RAPID

No one deplores more than I do the commercialization of certain phases of what we call the sex appeal or improper crime stories in the movies. No one deplores more than I do some of the stupid, inartistic, vulgar, uncultural, silly things in the movies. They are there as in books and newspapers. If censorship were a practical remedy for anything, we might better have it against bad taste, bad manners and some of the stupid, boresome movies that can do no harm to anyone except waste their time, and because of their very insipid stupidity, would meet with approval of any board of censors. It is all to be naturally expected in an industry or artistry so new. More patience, time and education are needed to correct them. No one is more anxious than I am to see them corrected. But it would be highly unjust not to, at the same time, keep in mind all that is right with the movies.

In their short life of scarcely a quarter of a century, they have done more to correct these follies and mistakes than literature and newspapers have done in a century.

When I deal with naughty children, I always find more good than evil in them, though their accusers seldom admit it. I get more out of them by praising them for the good they do than by condemning them for the evil they do. In this way do I succeed best. By working with them and not against them. (Let us then, with this equally human thing, see all the wonderful improvement that has been made in recent years, not only artistically, from the standpoint of the producer, but also from that of the growing demand of the public for clean shows, and the splendid work of the producers in furnishing them.)

PUBLIC OPINION RULES

And even when crime and vice are presented, when it must be done, more and more is it being done within the bounds of decency and with due regard to well-established rules that most every one knows and accepts. Few minds differ upon what is really obscenity and indecency. Nothing is being more frowned upon today than the stories written for a mere pornographic, sensual appeal, without any good purpose intended or

accomplished. For all of such cases, we have the laws against obscenity and indecency which are not near as much used or enforced as they might be and could be.

And we ever have the appeal to public opinion. I believe it is in the end safe and sane in this country. And then there is being held out to us by the producers themselves the open door invitation to join hands with them to give the public the thing that it wants most and that is, clean, decent, wholesome pictures. The children are being provided with special films and opportunities to see them.

Cooperation between public and producer and exhibitor is being successfully accepted as one of the best methods of carrying on propaganda in this country for better, bigger and cleaner pictures.

And, as a result, we are getting more and more of them all the time. From every standpoint in theme, story, purpose, photography, artistry, amazing progress has been made in the last few years. We have never had so many marvelous, unobjectionable pictures as now before the public. One of the very latest of these, "The Big Parade," is here. You have seen "The Ten Commandments." "Ben Hur" is being shown. Hundreds of others could be mentioned. I hold here a list of several hundred such, selected by Mrs. Virginia Palmer, State Chairman of the Motion Picture Department of our Colorado Parent-Teacher Association.

COOPERATION AND ENCOURAGEMENT

The work of Mr. Hays and his associates in courting cooperation and in receiving it from so many worthy sources deserves encouragement instead of criticism. It has been a great success. Any fair investigation of what the producers are doing under his able management will disclose an amazing improvement in the short time for its accomplishment. Let's work with them and not against them as the very best way to bigger and better things in the movies.

Especially is this course important when the best minds of this country—like Professor Ross, who has just addressed you—have warned us against the dangers of abuses sure and certain to come under governmental

censorship, and who, for many reasons, almost without exception, firmly oppose it. We have overwhelming proof that the people of this country do not want any more of such governmental regulation and that they are opposed to such dangerous powers being vested in any set of bureaucrats. This is confirmed by the recent vote in Massachusetts that in their referendum to the people buried the demand for motion picture censorship with a tidal wave of “noes.” It was certainly loud enough to be heard all over this country. The vote was 553,173 against censorship to 208,252 for it—a majority of 344,991 against.

REAL EDUCATION AND RELIGION

I am not questioning the sincerity or good motives of anyone. I simply question their understanding. How people can make the statements that are being made in some quarters, that the movies are getting worse instead of better, I cannot understand. I do not believe it. If they are, then it is a terrible indictment of our schools and churches, far more than of the movies. It is proof that they are failing. For if this thing be true, that, without the kind of governmental censorship and regulation that is being proposed in some quarters, the movies are to get worse and worse, then the churches and schools had better close their doors, for the claim is equivalent to a confession that they are failures. I do not believe they are failures. **I believe in real religion and in real education.** I think their power and influence are on the up-grade in this country. It is from their wise application that we must look most for our remedies in the fight against evil. The great duty to childhood today is that of parenthood and its handmaidens, the school and the church—real education and real religion.

RESPONSIBLE PEOPLE NEEDED

We must have in this country people responsible for these agencies, who will acquaint themselves with what evil is and equip themselves with the wisdom to teach children how to fight it, how to overcome it; that they shall come to know that the child's greatest safeguard against evil is not censorship—the policeman with the club to direct what he shall say, hear or do—the city, state or national wet-nursism from the day he is born until he becomes an adult man or woman.

PARENTAL RESPONSIBILITY

Rather do I appeal for the simpler and saner expedient of parental responsibility in companionship, spiritual training, education, ideals and confidences that will educate that child as to what evil is, to know where it lurks, and what he must do to avoid it; that will teach him to hate it and despise it.

In this work, we need the cooperation of this great, new institution, the movies. It can be done best by thus seeking the cooperation of those who have the economic control of this new power, this new means of education, the greatest that has ever appeared in any civilization.

I believe it can be done, and in a very large measure, it is being done, with glowing opportunities and prospects for greater accomplishment in the future than in the recent past. It is this sort of remedy that I heartily advocate rather than any censorship or regulation through city, state or national boards composed of people who are to be given arbitrary, tyrannical and dangerous powers over the development of the human mind. Such a remedy, I believe, will never be accepted by the American people. If it ever is, it will be the saddest day in the history of human progress since the bigotries and tyrannies of the Middle Ages. It would mean that the issues of the Scopes case in Tennessee would be as nothing compared to this new power of a few people to tell the balance of America what they shall see, hear or know, or what they shall be taught, to direct the human mind which alone can retard or advance the progress of the world.

For let it be remembered that moving pictures, as a medium of expression in influencing the human mind, as yet, are in their infancy. They will be greater than the printing press, and whoever controls this power will do most to control the future of the human race.

TRUST TO ALL THE PEOPLE

I would rather trust it to all the people than to a few people, especially when that few are backed, as is proposed, in their censorship regulations, by the powers of force and violence to impose their will upon all the others.

Once having put in the hands of a few individuals, whether puritans or politicians, of good or evil purpose, the power to say what books shall be screened, what stories shall be pictured, what scientific knowledge or achievement shall be presented, what reform espoused by capital or labor, class or church, group or party, and, what shall not, it will demand the same right as to the newspapers, books and other forms of human expression, possibly the platform itself, until all liberty and all freedom shall be lost unless such madness, as I believe it to be, should, if ever successful, be met by revolt and revolution.

The progress of art, science and literature in this country depends upon an unfettered, original creative imagination. There can be no progress or creative work anywhere with the hobble of censorship on these things at the helm. Freedom of thinkers, scientists, and artists does not mean degeneracy. It means justice, truth, progress, happiness, health and beauty. The chains of censorship mean irritation, reaction, bigotry, vice, immorality, gloom, degeneracy and death. Of course there are dangers in everything—good and evil in everything—all dependent on its use and understanding. But I would a thousand times rather take my chances on too much freedom than too much of these artificial restraints.

ALREADY REGULATED

There is, of course, some regulation of certain phases of the moving picture industry that is defensible. But it seems to me very unjust to compare the demand for censorship power to the same kind of governmental regulations of industrial affairs which have to do with business competition between individuals or corporations, or with the distribution of foodstuffs as to deleterious substances, on which no two minds can well differ after science has given its verdict.

Reasonable regulations as to business competition, labor, shipment of films, protection from fire, ventilation, seating, spacing and lighting of halls may well apply to the movies. But as a more justly analogous case, who would say even as to foodstuffs or drugs, about which we hear so much, that a board of bodily appetite censors should have a right to say whether a city's diet should not include pork chops, if a person preferred them to mutton chops, simply because of the views or tastes of the censors, or

because great religious teachers have censored the hog and approved the lamb; or that tea and coffee should be censored because other teachers say the taste of too much of it is worse than a moderate use of booze. The so-called badness of most pictures may be due far more to that which is bad in the taste of the censors than that which is really bad in the pictures.

LAWS ARE SUFFICIENT

And while I am not here discussing prohibition, yet as one of its original champions, I would be false to the truth if I did not, at least in discussing this new kind of prohibition of the thoughts of the human mind, refer to all the evils that have followed our efforts thus to curb by law the appetite of bodies. But even the case of the movies is different. Booze was believed to be poison for the body and the remedy was supposed to be complete outlawry. Well, at least we are not prepared to say what the final result is going to be, even though there may be justification there where none is here. What is poison for the body is much easier of ascertainment than what is poison for the mind. Acknowledged poisons of the mind are all met by laws against obscenity with their penalties and punishments. They are accepted as fair and just to everybody.

But human thought, which is back of all human progress and of all change in the customs, morals, habits, traditions and affairs of mankind, is an entirely different matter. It is in no way justly comparable to any other form of arbitrary, forcible censorship regulations that any state has ever undertaken. It seems to me that this is so true that unprejudiced minds cannot justly question it.

HUMAN THOUGHT NOT TO BE TAMPERED WITH

In the regulation of human thought, as presented through instruction or entertainment in the motion pictures, books or newspapers, we have an entirely different problem. It is too dangerous to tamper with in any governmental, regulative, arbitrary way. To attempt it is to court the greater evils of bigotry and fanaticism, of racial, religious and class prejudices, of hatreds and tyrannies.

I would a thousand times rather see civilization subjected to all the dangers which may lurk in an entirely, unregulated and uncensored press, or of books, plays or motion pictures, than to risk the far greater evils of arbitrary, forcible, governmental censorship regulation.

There are no committees of people on earth who have any such super wisdom or right to exercise any such power, no matter how commendable its purpose may be.

No, my friends, those who propose such remedies are honest but mistaken. I wish they could all be convinced. I know their purposes are good. I wish they would join the multitude of constructive fathers, mothers, preachers, teachers, business men and citizens, through the work of the home, school, church and press, enlisting, as I believe we can, the cooperation and help of those who produce and distribute the movies themselves, to get bigger, better and cleaner pictures.

Decorating the walls of this room, we have held up to us a picture of the crusader, St. George, in pursuit of the Dragon. It is an interesting poster. I have seen it held up to children and parents in Sunday-schools and churches. It has for us a great lesson. But I sometimes wonder if it is understood. In this picture, St. George is clad in armor.

USING ONE'S OWN STRENGTH

It is the symbol of HIS OWN STRENGTH and power to meet and slay the dragon—the evil he encounters.

Thus, down the path of life you have him started. He goes alone. He is protected by no governmental wet-nursism. No censors have preceded him to chase the dragons from his path. Now, just imagine the censors doing that, be they a certain type of dear, old ladies who never will be satisfied that anything is good if it pictures vice or crime, or well-meaning Puritans with worse complexes, or crafty politicians with itching palms, snooping into every crack and cranny for the smell of dragons (evil) to shoo them off the path before young George may proceed upon his way.

I hear them saying, "Come on, Georgie, dear boy; the path is clear; we censors have done your work; we have seen to it that not even a suspicious

tabby cat can cross your path. You have no fight to make; we will spare you even the sight of a dragon (evil) on the road.”

Is that what you are going to do to Young America? Change the noble knighthood of conflict and struggle to the milksophood of apron strings? Yet such is governmental censorship. Against it, I protest. Against it, modern youth revolts. I beseech you in their name, that you avoid a step so fatal and so false.

I know you do not want to make mollicoddles of this younger generation because a few morons or even alert, but vicious-minded, persons, have become criminals from something good or bad they have seen in the movies. I do not want to see methods adopted in mistaken purpose of fighting evil whose effect is only to make insipid, dependent, hot-house plants of modern youth.

I want to see a self-reliant Young America. I want to see it grow to sturdy manhood, like the oak that faces and fights the storm and fights best where the foe is known best and encountered most.

PREPARE YOUTH FOR THE PATH

This is the only right way to successfully equip the youth of America with moral, physical and mental efficiency. Then, and only then, as modern St. Georges, thus armored, they can be trusted THEMSELVES to meet the dragons of evil that cross the path of life. For down that path they have to go. You cannot prepare the path for them. You cannot clear it of the dragons. Forcible governmental censorship can't do it and ought not to do it.

It's our job to prepare youth for the path, the big job parents, teachers and preachers are neglecting in their mistaken effort too much to prepare the path for them. I do beseech you to direct your efforts more to preparing youth for the path and less to preparing the path for youth. Then, with perfect faith, you can trust him to go down that path, and though it be strewn with dragon's teeth, he will emerge triumphant, the glorious youth that he is—Young America,

**the noblest, bravest, wisest, most loyal, generous and just
that the world has ever seen—his own best censor.**

Transcriber's Note

Inconsistencies in hyphenation have been standardized.

Minor punctuation errors have been changed without notice.

New original cover art included with this eBook is granted to the public domain.

Spelling was retained as in the original except for the following changes:

Page 5 : “some of the week-minded”	to “some of the weak-minded”
Page 5 : “to be done. yet”	to “to be done. Yet”
Page 7 : “forever the undisputed soverign”	to “forever the undisputed sovereign”
Page 8 : “mostly by artificial restaints”	to “mostly by artificial restraints”
Page 9 : “of the natural restrains”	to “of the natural restraints”
Page 11 : “an industry or artistry”	to “an industry or artistry”
Page 11 : “what is really abscenty”	to “what is really obscenity”
Page 13 : “are backed, as it”	to “are backed, as is”

*** END OF THE PROJECT GUTENBERG EBOOK JUDGE BEN B.
LINDSEY ON THE CHILD—THE MOVIE—AND CENSORSHIP ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project

Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format

other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.